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April 14, 2025

ENGROSSED HOUSE
BILL NO. 2295

By: Hilbert of the House

and

Gollihare and Jech of the
Senate

An Act relating to hospital license; prohibiting the transfer of hospital licenses from one address to another; providing administrative requirements; providing for mediation; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-702.1 of Title 63, unless there is created a duplication in numbering, reads as follows:

No public trust hospital license or main provider location under a provider agreement with the Centers for Medicare and Medicaid Services (CMS), as provided for under 42 C.F.R., Sections 489.1 through 489.18, shall be transferred from its current address to an address greater than fifteen (15) miles away, if the public trust hospital is located in a community with a population of fewer than thirty thousand (30,000) residents, according to the latest Federal

1 Decennial Census. If a public trust hospital facility announces a
2 closure, before the closure of the facility, a mediator shall be
3 appointed. The municipality beneficiary of the public trust
4 hospital shall also appoint a mediator. The two mediators shall
5 appoint a mutually agreed-upon third mediator. The three mediators
6 shall agree upon a sales price for the hospital, in accordance with
7 appropriate due diligence and financial audits received from the
8 public trust hospital, if the hospital and the municipality cannot
9 agree without mediation. The hospital shall be transferred to the
10 beneficiary municipality if the beneficiary municipality is willing
11 to pay the agreed-upon purchase price set forth by the mediators and
12 has the appropriate staff identified to operate the hospital.

13 In the event the public trust hospital is sold to another
14 entity, the trustees of the hospital shall certify that they have
15 not entered into any agreement, formal or informal, with the
16 prospective owners of the hospital regarding any position, role, or
17 employment for themselves or their direct relatives, and they shall
18 also certify that they have not and will not receive any financial
19 benefit from the prospective owners, whether in-kind or otherwise.

20 In the event a public, third party, has been leasing the public
21 trust hospital and operating the public trust hospital under a
22 lease, upon termination of that lease, the hospital CMS provider
23 number shall revert back to the public trust hospital immediately
24

1 upon lease termination, in accordance with the provisions of 42
2 C.F.R., Section 489.18.

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1-702.2 of Title 63, unless
5 there is created a duplication in numbering, reads as follows:

6 All public trust hospital trustees shall be required to complete
7 a trustee education program, approved in advance by a statewide
8 hospital organization, leading to certification as a Certified
9 Hospital Trustee by a statewide hospital organization approved by
10 the State Department of Health. Trustee education shall commence
11 within ninety (90) days of appointment to the office of trustees for
12 the public trust hospital.

13 SECTION 3. This act shall become effective November 1, 2025.

14 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
15 April 14, 2025 - DO PASS
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